

sureties as the Officer authorized may direct, to appear, if and when so required, before the Magistrate having jurisdiction/

180(E) Search, seizure and arrest how to be made: All searches, seizures and arrest made under this act shall be carried out in accordance with the provisions of the Code of Criminal Procedure, 1973, relating respectively to searches and arrests made under that code.

180(F) Cognizance by court on a complaint made by officer authorised: No Court shall take cognizance of an offence mentioned in sub-section (2) of Section 179 except on a complaint made by the officer authorized.

180(G) Punishment for certain offences in relation to inquiry: - Whoever intentionally insults or causes any interruption in the inquiry proceedings or deliberately makes a false statement before the enquiring Officer shall be punished with simple imprisonment for a term which may extend to Six months, or with fine which may extend to one thousand rupees, or with both.

181. Magistrates having jurisdiction under the Act.- Notwithstanding anything contained in the Code of Criminal procedure, 1973 (2 of 1974), no, Court inferior to that of a Metropolitan Magistrate or a Judicial Magistrate of the first class shall try an offence under this Act.

182. Place of trial. – (1) Any person committing an offence under this Act or any rule made there under shall be triable for such offence in any place in which he may be or which the State Government may notify in the behalf, as well as in any other place in which he is liable to be tried under any law for the time being in force.

(2) Every notification under sub-section (1) shall be published in the official Gazette, and a copy thereof shall be exhibited for the information of the public in some conspicuous place at such railway station as the State Government direct.

Comment

Section 181 and 182 respectively provide for the court for trying the offences and the place of trial.

CHAPTER XVI

Miscellaneous

183. Power to provide other transport services. – (1) A railway administration may, for the purpose of facilitating the carriage of passengers or goods to provide integrated service for such carriage, provide any other mode of transport.

(2) Notwithstanding anything contained in any other law for the time being in force the provisions of this Act shall apply to the carriage of passengers or goods by the mode of transport referred to in sub-section (1).

Comment

Section 183 empowers the railway administration to provide or maintain any mode of transport for the purposes mentioned therein.

184. Taxation on railways by local authorities. – (1) Notwithstanding anything to the contrary contained in any other law, a railway administration shall not be liable to pay any tax in aid of the funds of any local authority unless the Central Government, by notification, declares the railway administration to be liable to pay the tax specified in such notification.

(2) While a notification of the Central Government under sub-section (1) is in force, the railway administration shall be liable to pay to the local authority either the tax specified in the notification or, in lieu thereof, such sum, if any, as an officer appointed in this behalf by the Central Government may, having regard to all the circumstances of the case, from time to time, determine to be fair and reasonable.

(3) The Central Government may at any time revoke or vary a notification issued under sub-section (1).

(4) Nothing in this section shall be construed to prevent any railway administration from entering into a contract with any local authority for the supply of water or light, or for the scavenging of railway premises, or for any other services which the local authority may be rendering or be prepared to render to the railway administration.

Comment

Section 184 provides for an exemption to the railway administration from the payment of tax to any local authority unless directed by the Central Government.

185. Taxation on railways for advertisement. – (1) Notwithstanding anything to the contrary contained in any other law, a railway administration shall not be liable to pay any tax to any local authority in respect of any advertisement made on any part of the railway unless the Central Government, by notification, declares the railway administration to be liable to pay the tax specified in such notification.

(2) The Central Government may at any time revoke or vary a notification issued under sub-section (1).